

20STCV04361 20STCV04361

County: los-angeles

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Case Number: 20STCV04361 Hearing Date: August 18, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

LOUIE

A. LOIZU,

Plaintiff,

vs.

LOS

ANGELES UNIFIED SCHOOL DISTRICT,

Defendant.

Case

No.:

20STCV04361

Hearing

Date:

August 18, 2026

ORDER

GRANTING DEFENDANT 'S MOTION FOR ATTORNEY FEES AND COSTS, IN PART

I. BACKGROUND

Defendant Los Angeles

Unified School District ("LAUSD") accepted Plaintiff Louie A. Loizu's ("Loizu") bid for a painting project; LAUSD allegedly added additional requirements after acceptance, which Loizu refused to perform absent additional payment. LAUSD subsequently terminated its contract with Loizu. Loizu sued LAUSD for breach of contract and declaratory relief.

On November 21, 2025, the jury found in favor of LAUSD. On March 10, 2026, the amended judgment was signed and entered against Loizu in principal amount of \$92,023.00.

On April

2, 2026, LAUSD filed the instant motion for attorney's fees seeking \$1,118,826.59 and a July 23, 2026 supplement seeking an additional \$89,041.88. Loizu filed an opposition. LAUSD filed a reply.

II. LEGAL STANDARD

Civil Code section 1717, subdivision (a), provides that "[i]n any action on a contract, where the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney's fees in addition to other costs." (Civ. Code, § 1717, subd. (a).) Attorneys' fees are allowed as costs when authorized by contract, statute, or law. (Code of Civil Procedure § 1033.5, subd. (a)(10)(B).[1]) The attorney bears the burden of proof as to "reasonableness" of any fee claim. (§ 1033.5(c)(5).) This burden requires competent evidence as to the nature and value of the services rendered. (Martino v. Denevi (1986) 182 Cal.App.3d 553, 559.) "Testimony of an attorney as to the number of hours worked on a particular case is sufficient evidence to support an award of attorney fees,

even in the absence of detailed time records.” (Ibid.)

A plaintiff's verified billing invoices are prima facie evidence that the costs, expenses, and services listed were necessarily incurred. (See *Hadley v. Krepel* (1985) 167 Cal.App.3d 677, 682.) “In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated to not suffice.” (*Lunada Biomedical v. Nunez* (2014) 230 Cal.App.4th 459, 488, quoting *Premier Med. Mgmt. Sys., Inc. v. California Ins. Guarantee Ass'n* (2008) 163 Cal.App.4th 550, 564.) The Court has discretion to reduce fees that result from inefficient or duplicative use of time. (*Horsford v. Bd. of Trustees of California State Univ.* (2005) 132 Cal. App. 4th 359, 395.)

In determining a reasonable attorney fee, the trial court begins with the lodestar, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. (*Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 36.) The lodestar may then be adjusted based on factors specific to the case in order to fix the fee at the fair market value of the legal services provided. (Ibid.) These facts include (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, and (4) the contingent nature of the fee award. (Ibid.)

“It is well established that the determination of what constitutes reasonable attorney fees is committed to the discretion of the trial court.... [Citations.] The value of legal services performed in a case is a matter in which the trial court has its own expertise. [Citation.] The trial court may make its own determination of the value of the services contrary to, or without the necessity for, expert testimony. [Citations.] The trial court makes its determination after consideration of a number of factors, including the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, and other circumstances in the case.” (*PLCM Grp. v. Drexler* (2000) 22 Cal.4th 1084, 1096.) “California law, like federal law, considers the extent of a plaintiff's success a crucial factor in determining the amount of a prevailing party's attorney fees.” (*Espejo v. The Copley*

Press, Inc. (2017) 13 Cal.App.5th 329, 381–82, quoting Environmental Protection Information Center v. California Dept. of Forestry and Fire Protection (2010) 190 Cal.App.4th 217, 238.)

IV. DISCUSSION

LAUSD moves for an award of attorney fees in the total amount of \$1,207,868.47 - \$1,118,826.59 in the original motion and \$89,041.88 in a supplemental filing.

A. Entitlement to Attorney Fees

LAUSD seeks an award of attorney's fees pursuant to jury verdict. Pursuant to Civil Code section 17171, subdivision (a), in any action on contract, where the contract specifically provides for attorney's fees and costs, fees and costs shall be awarded to the prevailing party. The subject contract contains such a provision. On November 21, 2025, the jury found in favor of LAUSD on all claims and issues and found Loizu was liable. (Mot., Rayburn Decl. ¶ 12, Ex. G.) Amended judgment was entered on March 10, 2026.

It is undisputed that LAUSD is the prevailing party in this action and is entitled to a reasonable amount in attorney fees.

B. Reasonableness of Fees

1. Reasonable Hourly Rate

In assessing the reasonableness of hourly billing rates, “the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees [citation], the difficulty or complexity of the litigation to which that skill was applied [citations], and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases.” (569 East County Boulevard LLC v. Backcountry Against the Dump, Inc. (2016) 6 Cal.App.5th 426, 437; see Mountjoy v. Bank of America, N.A. (2016)

245 Cal.App.4th 266, 272 [“a reasonable hourly rate is the product of a multiplicity of factors . . . [including] the level of skill necessary, time limitations, the amount to be obtained in the litigation, the attorney’s reputation, and the undesirability of the case”].) “The reasonable hourly rate is that prevailing in the community for similar work.” (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095.) “The experienced trial judge is the best judge of the value of professional services rendered in [her] court.” (Ibid.)

LAUSD seek to recover attorneys’ fees for 5 different attorneys who worked on the case: Paul Rayburn (“Rayburn”), Kelly Houle-Sandoval (“Sandoval”), Jannie Choi (“Choi”), Haik Gasparyan (“Gasparyan”), and Marley Fox (“Fox”). (Mot., Rayburn Decl. ¶ 15.) LAUSD also seeks to recover fees for paralegal work conducted by three paralegals: Kelly Lucas (“Lucas”), Katherine Eaton (“Eaton”), and Mursal Nyazi (“Nyazi”). (Ibid.) Rates differed for all counsel through the years this case was active.

Both Rayburn and Fox were partners at all times during this litigation and billed at the same rate. (Id. at ¶¶ 1, 16, 19.) Both had over 25 years of legal experience (Id. at ¶¶ 17, 18.) The Court finds the starting rate of \$295.00 per hour, billed from 2021-2023, facially reasonable. Between 2023 and 2024, partner billing rates were increased by \$15.00 per hour, a 5% increase; rates were increased by another 5% in 2025, making the new total \$325.00. (Id. at ¶ 16.) These appear to be reasonable increases to the Court. However, the jump 2026 jump from \$325.00 to \$395.00, increasing 21.5%, is unreasonable given the lack of change in status or experience for Rayburn or Fox in that one year, as well as the fact all other increases capped at 5%. (Ibid.) The Court instead caps the partner rate at \$340.00 for 2026 billing, based upon an approximate 5% billing increase.

Sandoval, Choi, and Gasparyan all billed at the associate rate, starting at \$270.00 per hour. (Ibid.) The associate rate increased approximately 3.5% between 2023 and 2024, and again between 2024 and 2025. (Ibid.) No associate billed at a 2026 rate. While the Court does not take issue with the rate for Sandoval and Choi, both of whom have over 15 years of legal experience, the Court finds it improper Gasparyan, who has only 9 years of legal experience, billed at the same rate. (Id. at ¶¶ 18, 19.) The Court reduces Gasparyan’s billing rate to \$250.00.

Paralegal rates started at \$140.00 per hour in 2021-2023, increasing to \$150.00 in 2024, \$160.00 in 2025, and \$225.00 in

2026. (Id. at ¶ 16.) The Court finds the jump between 2025 and 2026 unreasonable and caps the legal rate at \$170.00. The Court also notes Lucas and Eaton, 32 years and 40 years respectively, have substantially more experience than Nyazi, who only has 10 years experience. (Id. at ¶ 20.) Therefore, the Court will only award paralegal fees of \$100.00 for all of Nyazi's experience.

The Court also reduces all 'travel time' rates to \$100.00 flat, across all years and for all attorneys, as travel time does not require any specialized skills from counsel.

Based on the evidence provided and the court's own knowledge and familiarity with the legal market, the Court finds that all other requested rates here are within a reasonable range relative to rates awarded to comparable attorneys for comparable work.

2. Reasonable Hours

Incurred

"A trial court assessing attorney fees begins with a touchstone or lodestar figure, based on the 'careful compilation of the time spent and reasonable hourly compensation of each attorney ... involved in the presentation of the case.'" (Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1321.) "The reasonableness of attorney fees is within the discretion of the trial court, to be determined from a consideration of such factors as the nature of the litigation, the complexity of the issues, the experience and expertise of counsel and the amount of time involved. The court may also consider whether the amount requested is based upon unnecessary or duplicative work." (Wilkerson v. Sullivan (2002) 99 Cal.App.4th 443, 448.)

A prevailing party's verified billing invoices are prima facie evidence that the costs, expenses, and services listed were necessarily incurred. (Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682.) "In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence." (Lunada Biomedical v. Nunez (2014) 240 Cal.App.4th 459, 488.)

LAUSD seeks to recover attorney fees for 1,650.9

hours of attorney's time and 200.3 of paralegal time spent litigating this matter. Counsel submitted verified billing records in regard to this matter. (Mot., Rayburn Decl. ¶ 14, Ex. H.) A prevailing party's verified billing invoices are prima facie evidence that the costs, expenses, and services listed were necessarily incurred. (See *Hadley v. Krepel* (1985) 167 Cal.App.3d 677, 682.)

Loizu argues LAUSD's fee invoice is facially unreasonable based upon the facts of this case, as the facts and complexity of this case do not mandate the billed hours, five attorneys, or three paralegals. Loizu states that he was represented by at most two attorneys. (Loizu Decl., ¶ 8.) The Court agrees that a portion of the requested fees were duplicative or the result of overstaffing, especially given that moving counsel worked also with LAUSD's general counsel. (See *Missouri v. Jenkins* (1989) 491 U.S. 274, 288, fn. 10, in which the Court held purely clerical or secretarial tasks should not be billed at a lawyer or paralegal's usual rate, regardless of who performs them, and *Save Our Uniquely Rural Community Environment v. County of San Bernardino* (2015) 235 Cal.App.4th 1179, 1187, in which the Court found calendaring, preparing proofs of service, internal filing, preparing binders for a hearing, and scanning are examples of tasks that have been found to be purely clerical and thus noncompensable or compensable at a reduced billing rate.).

The Court finds a substantial portion of the requested hours are unduly cumulative, substantially excessive given experience of counsel and paralegals, and consist of either noncompensable clerical work, such as memorandums or internal communications. The case involved a straightforward breach of contract claim. The opposing party used primarily one attorney with some help from a second. The court may "make across-the-board percentage cuts either in the number of hours claimed or in the final lodestar figure" in consumer law cases "when a voluminous fee application is made." (*Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 41 [quotations and citation omitted].) The Court need not explain its calculation of the amount of attorney's fees awarded in detail; identifying the factors considered in arriving at the amount will suffice. (*Ventura v. ABM Indus. Inc.* (2012) 212 Cal.App.4th 258, 274-275.)

Based upon the evidence provided, the Court finds reasonable hours incurred are for one or two attorneys' work. Therefore, at the newly imposed rates, the Court finds reasonable fees are as follows:

2021 – 2023: \$54,916.13 in attorney fees and \$1,852.20 in paralegal fees, totaling \$56,768.33.

2024: \$35,084.25 in attorney fees and \$832.50 in paralegal fees, totaling \$35,916.75.

2025 (including 5-day jury trial): \$77,614.63 in attorney fees and \$6,800.00 in paralegal fees, totaling \$84,414.63.

2026: \$23,732.88 in attorney fees and \$285.00 in paralegal fees, totaling \$24,017.88.

Travel time: \$867.50.

In total, the Court finds merit as to \$201,985.09 in fees.

3. Lodestar Multiplier

LAUSD

requests the Court impose a 1.5 times multiplier on the total fees, arguing it that the rates charged by the district are not commensurate with the average hourly rates counsel charges other clients for similar litigation nor the prevailing hourly rates charged by attorneys for similar work in Los Angeles, Loizu's damages demands and refusal to settle, and the work performed. The Court does not find a basis to apply a multiplier; this was a non-complicated breach of contract claim. Counsel agreed to undertake this case under LAUSD's reduced rates, and Loizu should not bear the burden of counsel agreeing to take a lower fee rate. Therefore, the Court awards attorney fees totaling \$201,985.09.

V. CONCLUSION

Defendant LAUSD's motion for attorney fees is GRANTED, in part. The Court awards attorney fees of \$201,985.09.

LAUSD is ordered to give notice.

DATED:

August 18, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE

TAKE NOTICE:

- Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

- If a

party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

- Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

- If

the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated

statutory references are to the Code of Civil Procedure.